

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25303 against Sergeant (formerly Police Officer) Frank Bauers, Tax Registry No. 959410. This case was conferenced on January 4, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of ten (10) vacation days, after Sergeant (formerly Police Officer) Frank Bauers accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated April 11, 2022. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-25303

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, BAUERS	FIRST FRANK	M.I. R	COMMAND 102 PRECINCT
SHIELD NO. 18837	TAX REGISTRY NO. 959410	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2015	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Frank Bauers, on or about August 21, 2020, at approximately 2200, while assigned to 102 PCT and on duty, in the vicinity of 95-75 115th Street, Queens County, used offensive language, in that he made remarks to § 87(2)(b) based upon race, to wit: "act like an animal pal, you get treated like one," without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Frank Bauers, on or about August 21, 2020, at approximately 2200, while assigned to 102 PCT and on duty, in the vicinity of 95-75 115th Street, Queens County, was discourteous, in that he said, "act like an animal pal, you get treated like one," to § 87(2)(b) without police necessity.	DISMISSED	

DC Bauers

FIRST DEPUTY COMMISSIONER

3/14/24

DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...

POLICE COMMISSIONER

4/3/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 28, 2024

Re: CCRB Case No. 202006219 (Incident Date: August 21, 2020) involving Sergeant Frank Bauers, Tax No. 959410 (DADS No. 2022-25303)

Dear Mr. Darche:

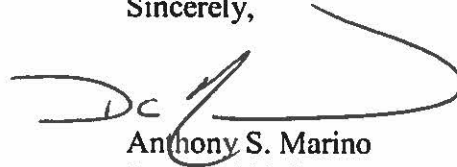
The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Bauers and has determined that his actions do not warrant the proposed penalty.

In this case, Sergeant (formerly Police Officer) Bauers responded to a 911 call for an intoxicated man, threatening people with a baseball bat. The supervisor on scene determined the male was in fact intoxicated and should be removed to the hospital. The male was placed in handcuffs and used his legs to wrap them around a stair railing, requiring several officers, including Sergeant Bauers, to pull the male off the railing. The male was then carried by multiple officers to an awaiting ambulance at the end of the street. As the male was being carried off, Sergeant Bauers said, "Act like an animal pal, you get treated like one."

It was unprofessional for Sergeant Bauers to have made this statement. However, given the totality of the circumstances, the Police Commissioner deems this to have been discourteous, rather than offensive language. Therefore, while the Police Commissioner agrees with the CCRB that the charges and specifications in this matter should be dismissed, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation

days, as a more appropriate penalty. Additionally, no disciplinary action will be imposed for the offensive language allegation.

Sincerely,

A handwritten signature in black ink, appearing to be "AS Marino", with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 2, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Frank Bauers
Disciplinary Case No.: 2022-25303

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 28, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend to impose a lesser penalty than what CCRB recommended for Sergeant Bauers. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that the actions of Sergeant Bauers do no warrant the imposition of CCRB’s proposed penalty and you intend to impose a lesser penalty of a Command Discipline Schedule A and the forfeiture of five (5) vacation days. CCRB disagrees with your recommendation.

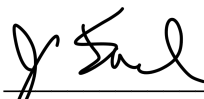
It is undisputed that Sergeant Bauers stated, “Act like an animal pal, you get treated like one,” to § 87(2)(b). While CCRB agrees that “it was unprofessional for Sergeant Bauers to have made this statement,” CCRB disagrees that “given the totality of the circumstances, the Police Commissioner deems this to have been discourteous, rather than offensive language.” This statement clearly meets the requirements to qualify as discourteous and offensive language. The NYPD Disciplinary Matrix states that “Offensive language is more serious conduct than discourtesy and includes slurs based on membership in a protected class such as race, religion, ethnicity, gender, gender identity, sexual orientation, age or disability.” Sergeant Bauers’ usage of the word “animal,” is, on its face, a slur based on § 87(2)(b) race. Hence, Sergeant Bauers should be held accountable for using offensive language with § 87(2)(b) and CCRB’s proposed total penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days for both specifications should be imposed.

Please note that the negotiated penalty was one mandated by the Disciplinary Matrix, as CCRB took into account the totality of the circumstances during this incident and the nature of the

discourteous and offensive language when choosing the mitigated penalty for each specification and running them concurrently for the total forfeiture of ten (10) vacation days. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Jeff Adler during the plea conference held on January 4, 2024.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of ten (10) vacation days be imposed for both specifications.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

CC: Michael Martinez, Esq.